

IN THE HIGH COURT OF JUDICATURE AT MADRAS

W.P. No. 9102/2024

Date of Decision: 25-04-2024

Green Tamil Nadu Forum ... Petitioner

VERSUS

Tamil Nadu Pollution Control Board ... Respondent

FACTS OF THE CASE:

1. Illegal industrial effluent discharge into river basin.

ISSUES:

1. Application of Polluter Pays Principle and Precautionary Principle under Environment Protection Act, 1986.

REASONING & DECISION:

State is trustee of natural resources under Public Trust Doctrine.

RATIO DECIDENDI:

Polluter Pays Principle requires restitution of degraded environment.

DECISION:

Environmental compensation of Rs 5 Crores levied.